

**GENERIC TERMS
LIKE “ECO-
FRIENDLY” AND
“RECYCLABLE”
CREATE THE
IMPRESSION
THAT THE ENTIRE
PRODUCT OR
COMPANY IS GREEN**

continued and expanding fossil fuel operations. The financial sector, too, faces scrutiny as institutions market “green bonds” or ESG funds that may include companies with questionable track records.

The effectiveness of regulation and self-regulation in combating greenwashing needs examining. The Advertising Standards Council of India (ASCI), for instance, released its Greenwashing Guidelines in January 2024 and processed 222 advertisements from February 15, 2024, to March 31, 2025. However, voluntary codes of conduct can lack enforcement when it comes to wilful or repeat offenders, and this is where the law must step in.

The Department of Consumer Affairs released its greenwashing guidelines in October 2024. But effective implementation and enforcement remain key challenges, with no publicly available data on action taken. The way ahead requires stronger, more harmonised approaches with increased accountability and consumer empowerment.

Some key patterns of greenwashing emerged in the cases reviewed by ASCI. The fact that most cases involved broad, unqualified claims like “eco-friendly”, “sustainable”, and “biodegradable” shows the tendency to use vague language that lacks verifiable information. The dominance of the homecare sector (47%) in these violations suggests a potentially high consumer engagement or is possibly the result of aggressive marketing strategies. The prevalence of these misleading claims, largely seen in online advertisements, often identified through suo moto surveillance by ASCI, highlights the importance of proactive monitoring in the digital space.

It is important to note that several organisations, traditionally criticised

for their business practices, are often worried about talking about some genuine work due to a fear of consumer backlash. Hence, the phenomenon of green-hushing is also prevalent.

The ASCI guidelines for environmental claims require such claims to be clear and specific. Advertisers need to accurately state which part of the product, packaging, or service is environmentally beneficial. Absolute claims like “eco-friendly” or “sustainable” require robust scientific evidence or credible certifications and cannot be weakened by disclaimers or indirect references. Comparative claims such as “greener” must be supported by clear data, and the basis of comparison should be disclosed. Claims must be based on the full lifecycle of the product or service or explicitly state if limited to certain aspects. Certifications and seals must come from nationally or internationally accredited bodies, with clear disclosure of what attributes were evaluated. Additionally, claims about being “free-of” certain substances must not mislead consumers, especially if those substances are uncommon or legally prohibited in similar products. Aspirational claims about future environmental goals are allowed only if backed by clear, actionable plans.

While the increased focus on environmental responsibility is a positive development, the risk of greenwashing replacing genuine green action is real and significant. A robust framework that combines clear and effectively enforced regulation, enhanced transparency, empowered consumers, and strong accountability mechanisms is essential to ensure that the pursuit of a greener future is not undermined by a mere veneer of sustainability. **BT**

Views are personal